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File No.: EXP202310781 (PS/000372/2023)

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following:
BACKGROUND

FIRST: The Spanish Agency for Data Protection became aware on July 21, 2023, through a complaint filed by FACUA CASTILLA Y LEON - CONSUMIDORES EN ACCIÓN (hereinafter, the complainant) of certain facts that could violate data protection legislation. The complaint is directed against AYUNTAMIENTO DE RENEDO DE ESGUEVA with NIF P4713400B (hereinafter, AYUNTAMIENTO) in relation to the following facts:

The complainant states that the AYUNTAMIENTO published on its official Facebook account, on June 28, 2023, the results of the draw to be a member of the electoral tables. The published lists include the names and two surnames of each member (regular and substitute) and level of education.

Along with the complaint, screenshots of the AYUNTAMIENTO's publication on Facebook, dated June 28, 2023, regarding the results of the draw to be a member of the electoral tables were provided.

SECOND: On January 30, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against AYUNTAMIENTO, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR, and for the alleged infringement of Article 32 of the GDPR, classified under Article 83.4 of the GDPR, in which it was indicated that there was a period of ten days to submit allegations.

This initiation agreement, which was notified to AYUNTAMIENTO on January 30, 2024, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was recorded, as evidenced by the acknowledgment of receipt in the file.

THIRD: On February 8, 2024, a written response was received from AYUNTAMIENTO in this Agency, in due time and form, in which it presented allegations to the initiation agreement, stating in summary that:

"1. The immediate removal of the publications on the official Facebook account of this City Council that were the subject of the complaint has been carried out.

2. These publications were made due to the insistence and numerous requests from residents since many of them were on vacation, making notification difficult."

FOURTH: On February 16, 2024, a proposal for resolution was formulated, proposing that the Director of the AEPD declare that AYUNTAMIENTO DE RENEDO DE ESGUEVA, with NIF P4713400B, has infringed the provisions of Article 5.1.f) of the GDPR, an infringement classified under Article 83.5 of the GDPR, as well as the provisions of Article 32 of the GDPR, an infringement classified under Article 83.4 of the GDPR.

This proposal for resolution, which was notified to AYUNTAMIENTO in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), was recorded on February 16, 2024, as evidenced by the acknowledgment of receipt in the file.

FIFTH: On February 29, 2024, a written response was received from AYUNTAMIENTO in this Agency, in due time and form, in which it presented allegations to the proposal for resolution, stating in summary that:

"1. This City Council has carried out the necessary tasks to ensure compliance with data protection regulations, attaching the report from the Data Protection Officer in this regard.

2. This City Council is very aware of the need to comply with said regulations and will take all necessary measures to that end."

From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: On June 28, 2023, the Ayuntamiento de Renedo de Esgueva published on its official Facebook

account the results of the draw to be a member of the electoral tables (pages 7 to 12 of the file). The published lists include the names and two surnames of each member (regular and substitute), level of education, and data of the assigned table.

LEGAL GROUNDS

I

Competence

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In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In the present case, in accordance with the provisions of Article 4.1 of the GDPR, it is recorded that there is a processing of personal data, since the CITY COUNCIL, in compliance with the regulations related to the electoral regime, carries out a processing activity, such as the designation of members of the electoral tables, in which the following personal data of individuals are processed, among others: name, surname, and level of education, understanding personal data as: "any information relating to an identified or identifiable natural person."

The CITY COUNCIL carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR, which defines the "data controller" or "controller" as: "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing; where the law of the Union or of the Member States determines the purposes and means of processing, the data controller or the specific criteria for its appointment may be established by the law of the Union or of the Member States."

An identifiable natural person is considered to be one whose identity can be determined, directly or indirectly, in particular by means of an identifier, such as a name, identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that person.

Moreover, processing should be understood as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination, or any other form of enabling access, alignment, combination, restriction, erasure, or destruction."

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For its part, Article 4, paragraph 12 of the GDPR broadly defines "personal data security breaches" as "all breaches of security that result in the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or unauthorized communication or access

to such data."

Within the principles of processing set forth in Article 5 of the GDPR, the integrity and confidentiality of personal data are guaranteed in paragraph 1.f) of Article 5 of the GDPR. In turn, the security of personal data is regulated in Article 32 of the GDPR, which governs the security of processing.

III

Response to the allegations regarding the initiation agreement and the allegations regarding the proposed resolution

A) Regarding the allegations made against the initiation agreement of the present sanctioning procedure, a response is provided according to the order presented by the responding party in their writing:

"1. The immediate removal of the publications on the official Facebook account of this City Council that have been the subject of complaint has been carried out."

The removal of the publication of the announcement that prompted the initiation of this procedure does not imply a change in responsibility regarding the alleged facts.

"2. These publications were made due to the insistence and numerous requests from residents since many of them were on vacation, making notification difficult."

As reasoned in the initiation agreement, according to the Central Electoral Board in its Agreement 663/2011, the public nature of the draw for the designation of the members of the Electoral Table provided for in Article 26.2 of Organic Law 5/1985, of June 19, on the General Electoral Regime (hereinafter, LOREG), does not determine the need for publicity of the resulting data, especially considering that they are not definitive, as they may be subject to excuse. The communication of the designation as a member of the electoral table must be subject to notification, which will be carried out in accordance with the corresponding official model. In any case, any measure taken to provide information about the result of the draw to the designated citizens, in order to facilitate their participation as members of the electoral tables, must respect the confidentiality principle provided for in Article 5.1.f) of the GDPR.

For all the above reasons, the allegations are dismissed.

B) Regarding the allegations made against the proposed resolution of the present sanctioning procedure, a response is provided as follows:

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- "The CITY COUNCIL has carried out the essential tasks to ensure compliance with data protection regulations... it is very aware of compliance with such regulations and will take all necessary measures for this purpose."

The measures adopted by the CITY COUNCIL to ensure proper compliance by its employees with data protection regulations are positively assessed, without these undermining the responsibility of the CITY COUNCIL in the commission of the facts subject to this procedure.

For all the above reasons, the allegations are dismissed.

IV

Integrity and confidentiality

Article 5 of the GDPR, under the title "Principles relating to processing," establishes in its paragraph 1.f) the following:

"1. Personal data shall be:

(...)

f) processed in such a way as to ensure an adequate level of security of personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, by applying appropriate technical or organizational measures ('integrity and confidentiality')."

In the present case, it is established that the CITY COUNCIL published on its official Facebook account, on June 28, 2023, the lists of individuals who had been designated to be members of the

electoral tables, as a result of the corresponding draw among the registered individuals in the municipality. These published lists include the names and two surnames of each member (vocal and substitutes) and level of education, personal data to which unauthorized third parties had access. The principle of confidentiality aims to prevent unauthorized leaks of personal data by the holders of such data.

Agreement 663/2011 of the Central Electoral Board establishes the following regarding the publication of the composition of the electoral tables:

“1º) LOREG establishes the public nature of the draw for the designation of the members of the Table in Article 26.2 LOREG, but not the publicity of the resulting data, especially considering that they are not definitive as they may be subject to excuse. This Presidency does not understand the justification for such publicity, with the only exception being that the interested party may verify, by entering their personal data, whether they have been designated as a member of an electoral table, in the same way that the interested party can verify their census data.

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2º) Such publication shall not, under any circumstances, replace the act of notification of the designation. It is the doctrine of this Board that the notification shall be carried out using the official model approved by Royal Decree (Ac. June 17, 1987). The official model is contained in Annex 7. C.7.4 of Royal Decree 605/1999 of April 16, which establishes the complementary regulation of electoral processes.”

According to the Central Electoral Board, there is no reason that justifies the publicity of the result of the draw for the designation of the members of the tables, despite its public nature. Let us remember that, according to Article 19 of the LOREG, the consultations resolved by the Central Electoral Board are binding.

Therefore, in accordance with the evidence available at this moment of resolution of the sanctioning procedure, it is considered that the known facts constitute an infringement, attributable to the AYUNTAMIENTO, for violation of Article 5.1.f) of the GDPR.

V

Classification and qualification of the infringement of Article 5.1.f) of the GDPR

Article 83.5.a) of the GDPR classifies as an infringement the violation of the following provisions:

“a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)”

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72 of the LOPDGDD, which qualifies the following conduct as very serious:

“1. In accordance with what is established in Article 83.5 of Regulation (EU) 2016/679, the following infringements are considered very serious and shall be subject to a three-year limitation period, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679. (...)”

VI

Declaration of infringement

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 establishes:

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“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Likewise, Article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which they are responsible or processors:

a) [...]

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise the Local Administration.

[...]

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures that should be adopted to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where applicable, and to the affected parties who had the status of interested parties, where applicable.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on disciplinary or sanctioning regime that is applicable.

Likewise, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, the resolution imposing the sanction shall include a reprimand naming the responsible position and shall order the publication in the Official State Gazette or the corresponding autonomous gazette.

4. The resolutions relating to the measures and actions referred to in the previous paragraphs shall be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article shall be communicated to the Ombudsman or, where appropriate, to the analogous institutions of the autonomous communities.”

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Therefore, this provision establishes that the procedures arising from infringements related to the protection of personal data committed by the categories of data controllers or processors listed in its section 1 will be resolved by declaring the infringement.

It has been confirmed that the conduct carried out by the CITY COUNCIL constitutes a violation of Article 5.1(f) of the GDPR, and it is appropriate to declare that an infringement has been committed by the CITY COUNCIL.

VII

Security of Processing

Article 32.1, “Security of Processing,” of the GDPR states:

“1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the varying likelihood and severity of risks to the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which shall include, as appropriate:

a) the pseudonymization and encryption of personal data;

- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
 - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
 - d) a process for regularly testing, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.
- (...)"

It should be noted that the GDPR in the aforementioned provision does not establish a list of security measures that are applicable according to the data being processed, but rather states that the controller and the processor shall implement technical and organizational measures that are appropriate to the risk posed by the processing, taking into account the state of the art, the costs of implementation, the nature, scope, context, and purposes of the processing, and the likelihood and severity of risks to the rights and freedoms of the data subjects.

Furthermore, the security measures must be adequate and proportionate to the identified risk, indicating that the determination of technical and organizational measures must be made considering: pseudonymization and encryption, the ability to ensure confidentiality, integrity, availability, and resilience, the ability to restore availability and access to data after an incident, and a process of verification (which is not an audit), assessment, and evaluation of the effectiveness of the measures.

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In any case, when assessing the adequacy of the level of security, particular attention will be paid to the risks presented by data processing, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data that could cause physical, material, or immaterial harm. In this same regard, Recital 83 of the GDPR states:

"(83) In order to maintain security and prevent processing from infringing the provisions of this Regulation, the controller or the processor must assess the risks inherent in the processing and implement measures to mitigate them, such as encryption. These measures must ensure an adequate level of security, including confidentiality, taking into account the state of the art and the costs of their implementation in relation to the risks and the nature of the personal data that must be protected. When assessing the risk in relation to data security, the risks arising from the processing of personal data must be taken into account, such as the destruction, loss, or accidental or unlawful alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data, particularly those that could cause physical, material, or immaterial harm."

Recital 75 of the GDPR lists a series of factors or situations associated with risks to the guarantees of the rights and freedoms of data subjects:

"The risks to the rights and freedoms of natural persons, of varying severity and probability, may arise from the processing of data that could cause physical, material, or immaterial harm, particularly in cases where the processing could lead to discrimination, identity theft or fraud, financial losses, damage to reputation, loss of confidentiality of data subject to professional secrecy, unauthorized reversal of pseudonymization, or any other significant economic or social harm; in cases where data subjects are deprived of their rights and freedoms or prevented from exercising control over their personal data; in cases where the personal data processed reveal ethnic or racial origin, political opinions, religion or philosophical beliefs, trade union membership, and the processing of genetic data, data concerning health, or data concerning a person's sex life, or criminal convictions and related security measures; in cases where personal aspects are evaluated, in particular the analysis or prediction of aspects related to work performance, economic situation, health, personal preferences or interests, reliability or behavior, situation or movements, in order to create or use personal profiles; in cases where personal data of vulnerable individuals, particularly children, are processed; or in cases

where the processing involves a large amount of personal data and affects a large number of data subjects.”

The responsibility of the MUNICIPALITY is determined by the lack of appropriate security measures, as it is responsible for making decisions aimed at effectively implementing appropriate technical and organizational measures to ensure a level of security appropriate to the risk, in order to ensure that the

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personal data of citizens who are part of the electoral tables of their municipality remain inaccessible to unauthorized third parties.

In this regard, Recital 74 of the GDPR states that:

“Responsibility for any processing of personal data carried out by the controller or on its behalf must be established. In particular, the controller must be obliged to implement appropriate and effective measures and must be able to demonstrate compliance of the processing activities with this Regulation, including the effectiveness of the measures. Such measures must take into account the nature, scope, context, and purposes of the processing, as well as the risk to the rights and freedoms of natural persons.”

Translating these considerations to the specific case, it can be concluded that, at the time the complaint was made, the MUNICIPALITY did not have reasonable security measures in place based on the estimated potential risks.

There is no record of any specific technical or organizational measures aimed at preventing the communication to an unauthorized third party of the personal data of citizens contained in the MUNICIPALITY's database, considering that since 2011 there has been an agreement from the Central Electoral Board stating that the publication of personal data of members of electoral tables was not a measure covered by the regulations of the general electoral regime.

Therefore, in accordance with the evidence available at this time of the sanctioning procedure resolution, it is considered that the known facts constitute an infringement, attributable to the MUNICIPALITY, for violation of Article 32 of the GDPR.

VIII

Classification and qualification of the infringement of Article 32 of the GDPR

Article 83.4.a) of the GDPR classifies the violation of the following provisions as an infringement:

“a) the obligations of the controller and the processor under Articles 8, 11, 25 to 39, 42, and 43; (...)”

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a two-year limitation period, in accordance with Article 73.f) of the LOPDGDD, which qualifies the following conduct as serious:

“According to what is established in Article 83.4 of Regulation (EU) 2016/679, serious infringements that constitute a substantial violation of the articles mentioned therein will prescribe in two years, particularly the following: (...)”

f) The failure to adopt those technical and organizational measures that are appropriate to ensure a level of security appropriate to the risk of processing, as required by Article 32.1 of Regulation (EU) 2016/679.

(...)

IX

Declaration of infringement

Article 83 “General conditions for the imposition of administrative fines” of the GDPR in its paragraph 7 states:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Regime applicable to certain categories of controllers or processors” of the LOPDGDD provides the following:

“1. The regime established in this article shall apply to the processing for which they are responsible or which they process:

a) (...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that comprise Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures to be adopted to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

The resolution shall be notified to the controller or processor, to the body to which it hierarchically depends, where appropriate, and to the affected parties who had the status of interested parties, where appropriate.

3. Without prejudice to the provisions of the previous paragraph, the data protection authority shall also propose the initiation of disciplinary proceedings when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied shall be those established in the legislation on the disciplinary or sanctioning regime that is applicable.

Furthermore, when the infringements are attributable to authorities and executives, and the existence of technical reports or recommendations for processing that have not been duly addressed is proven, in the resolution imposing the

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The sanction will include a warning with the designation of the responsible position and will order the publication in the Official State Bulletin or the corresponding regional bulletin.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

Thus, this provision establishes that the procedures arising from infringements in the area of personal data protection committed by the categories of controllers or processors listed in section 1 will be resolved by declaring the infringement.

It is confirmed that the conduct carried out by the TOWN HALL constitutes a violation of Article 32 of the GDPR, and it is appropriate to declare that an infringement has been committed by the TOWN HALL.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the TOWN HALL OF RENEDO DE ESGUEVA, with NIF P4713400B, has infringed the provisions of Article 5.1.f) of the GDPR, an infringement classified in Article 83.5 of the GDPR, and the provisions of Article 32 of the GDPR, an infringement classified in Article 83.4 of the GDPR.

SECOND: TO NOTIFY this resolution to the TOWN HALL OF RENEDO DE ESGUEVA.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6

of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Contentious Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Contentious Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with the documentation that proves the effective filing of the administrative contentious appeal. If the Agency is not aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Director of the Spanish Agency for Data Protection

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